

PERFORMANCE WORK STATEMENT (PWS)

FORKLIFT RENTAL PERFORMANCE WORK STATEMENT PUGET SOUND NAVAL SHIPYARD

PART 1 GENERAL INFORMATION

1. **GENERAL:** This is a non-personal services Firm Fixed Price Indefinite Quantity Indefinite Delivery (IDIQ) contract to provide leasing of various types of forklifts for the government. The Government shall not exercise direct supervision or control over any contractor employees. Notwithstanding, contractor shall ensure employees comply with all requirements of this Performance Work Statement (PWS) and contract.

1.1 **Description of Services/Introduction:** The contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform operational lease of forklift rentals as defined in this Performance Work Statement except for those items specified as government furnished property and services. The contractor shall perform to the standards in this contract.

1.2 **Background:** Puget Sound Naval Shipyard and Intermediate Maintenance Facility (PSNS) is an industrial complex whose mission is to maintain, modernize and retire the Navy fleet with a vision of on-time maintenance, modernization, and retirement of the U.S. Navy's fleet. The shipyard in Bremerton is the Pacific Northwest's largest naval shore facility and one of Washington State's largest industrial installations.

In order to accomplish this mission PSNS utilizes a wide array of material handling equipment including several different variations of forklifts. In order to meet the mission's demand the government must subsidize its inventory of government owned forklifts by leasing additional forklifts.

1.3 **Objectives:** The requirement is to provide leased forklift services for material movement throughout the installations and aboard ships/boats at Bremerton, Silverdale/Bangor, and Everett, Washington.

1.4 **Scope:** Leasing of various types of forklifts for a 5 year ordering period at the locations listed in paragraph 1.7.1. Services include leasing, transportation, inspection, maintenance, and emergency repair of forklifts.

1.5 **Ordering Period:** The ordering period shall be 5 years from the date of award.

Ordering Period	Anticipated Start	Anticipated End
Year 1	11-01-2026	10-31-2027
Year 2	11-01-2027	10-31-2028
Year 3	11-01-2028	10-31-2029
Year 4	11-01-2029	10-31-2030
Year 5	11-01-2030	10-31-2031

1.6 **Quality Assurance:** The government shall evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan. This plan is primarily focused on what the Government must do to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

1.7 Location:

1.7.1 Place of Performance: The work to be performed under this contract will be performed at Puget Sound Naval Shipyard and Intermediate Maintenance Facility which includes Bremerton, Bangor, Everett, and any satellite location as determined by Puget Sound Naval Shipyard which will be within a 50-mile radius of Puget Sound Naval Shipyard, or the contractor's repair facility. If maintenance/repair cannot be completed in one day the contractor shall transport the forklift to contractor repair facility to perform work at no additional cost to the government.

1.7.2 Hours of Operation: The contractor is responsible for conducting business, between the hours of 0700-1600 Monday thru Friday except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. For other than firm fixed price contracts, the contractor will not be reimbursed when the government facility is closed for the above reasons. The Contractor must at all times maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential.

1.7.3 Recognized Holidays: Contractor is not required to perform services on federal holidays. The list of current federal holidays can be found here: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>

1.8 Security Requirements: Contractor Employees, in order to gain access to the government facility identified in paragraph 1.7.1 to perform work under this contract, shall comply with the Badging and Access Requirements Attachment to the solicitation/contract.

1.8.1 Physical Security: The contractor shall be responsible for safeguarding all government equipment, information, and property provided for contractor use. At the close of each work period, government facilities, equipment, and materials shall be secured.

1.9 Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office in accordance with Federal Acquisition Regulation Subpart 42.5. The contracting officer, Contracting Officers Representative (COR), and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the government.

1.10 Contracting Officer Representative (COR): The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements, including Government drawings, designs, specifications; monitor Contractor's performance and notifies both the Contracting Officer and Contractor of any deficiencies; coordinate availability of government furnished property, and provide site entry of Contractor personnel.

The COR is NOT authorized to change any of the terms and conditions of this contract. **Only the warranted Contracting Officer is authorized to make modifications/changes to the terms and conditions of this contract.** If the Contractor believes any Government personnel has effectively issued a change resulting in a change in effort and price/cost of the contract, the Contractor shall immediately notify the Contracting Officer in writing.

CORS:

PRIMARY

[REDACTED]

ALTERNATE

[REDACTED]

1.11 Contract Manager: The contractor shall provide a contract manager who shall be responsible for the performance of the work. The name of this person and an alternate who shall act for the contractor when the manager is absent shall be designated in writing to the contracting officer. The contract manager or alternate shall have full authority to act for the contractor on all contract matters relating to execution of this contract.

1.12 Identification of Contractor Employees: All contractor personnel working in situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression that they are Government officials. All contractor personnel on a government installation will be required to obtain and wear badges in the performance of this contract.

1.13 Contractor Travel: All contractor personnel will be required to travel from place of business in CONUS to PSNS & IMF Bremerton, Bangor, and/or Everett WA.

PART 2
DEFINITIONS & ACRONYMS

2. **DEFINITIONS AND ACRONYMS:**

2.1. COMMON DEFINITIONS: Per Clause 52.212-4(e), clause 52.202-1 is incorporated by reference to this contract.

PART 3
GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

3. **GOVERNMENT FURNISHED ITEMS AND SERVICES:**

3.1 Services:

3.1.1 The Government will provide all required government personnel and contracted personnel for forklift operations.

3.1.2 The Government will provide all fuel and personnel/equipment required for forklift refueling.

3.1.3 The Government will perform a pre-operational and post-operational safety inspection of the forklift as part of daily use. If the forklift is defective, needing repair or maintenance or found to be otherwise unsafe it will be removed from service and the contractor will be notified of the forklift status.

3.1.4 The Government will provide crane lifting and handling services as required for the forklifts.

3.1.5 The Government will provide accident reporting services if the forklift is involved in an accident or mishap it will be removed from service and the contractor will be notified of the forklift's status.

3.2 Equipment: Additional forklift attachments may be onsite or purchased and used by the government with approval from the Puget Sound Naval Shipyard and Intermediate Maintenance Facility Rigging Engineering Branch ([REDACTED]). These attachments will be used by qualified personnel in conjunction with OEM permission or a written memorandum from a certified professional engineer in compliance with applicable OSHA and ASME standards.

PART 4 CONTRACTOR FURNISHED ITEMS AND SERVICES

4. CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:

4.1 General: The Contractor shall furnish all supplies, equipment, facilities, materials and services required to perform work under this contract that are not listed under Section 3 of this PWS.

4.2 Weigh vehicle(s) prior to delivery and mark (4 inch high black lettering) with the individual weight in pounds on each side of vehicle(s). OEM weight markings are acceptable.

4.3 Provide vehicle(s) that meets, or exceeds, the safety requirements of PART 7 Applicable Publications related to the elements of design, operation, and maintenance, the standardization relating to principal dimensions to facilitate interchangeability, and establishment of test methods and test procedures, for powered and non-powered industrial trucks.

4.4 Accomplish the following prior to delivery and provide written certification of accomplishment upon delivery:

- 4.4.1 Provide new condition maintenance free battery.
 - 4.4.2 Inspect all hoses and belts for cracks, wear, etc. and replace items that suspect to failure.
 - 4.4.3 Replace the engine oil with new.
 - 4.4.4 Operationally test the vehicle(s) to include all manufacturer safety features and performance criteria.
 - 4.4.5 Ensure all forklifts do not have a spinner knob on steering wheel and the hole plug is installed.
 - 4.4.6 Inspect the vehicle(s) provided, at the time of delivery and before acceptance, with the Contracting Officer's Representative (COR) or other authorized government representative.
 - 4.4.7 Document in writing the condition of the vehicle to ensure it meets contract requirements. Provide a signed copy of the inspection document to the government representative. Correct any discrepancies noted or replace the delivered vehicle(s) with a compliant unit.
- 4.5 Inspect the vehicle(s), upon completion of the period of performance and at the time of pick-up, or prior to the return of the vehicle(s) to the contractor for maintenance, repair or replacement during the period of performance, with the authorized Government representative and document any new conditions or damage. Provide a signed copy of the inspection document to the government representative.

- 4.6 Provide a copy of the manufacturer Operation manual(s), containing detailed operating instructions specific for the vehicle provided to the Contracting Officer's Representative or designated Government employee.
- 4.7 Perform any required scheduled maintenance, in accordance with the manufacturer's maintenance standards, on vehicles provided during the period of performance.
 - 4.7.1 Provide the planned scheduled maintenance schedule, with the contractor's proposal, and notify the Contracting Officer's Representative four days in advance of performing maintenance on the vehicle(s), to permit coordination with project workload.
 - 4.7.2 Provide a replacement vehicle, within 24 hours, for any unscheduled repairs required.
 - 4.7.3 Perform lockout/tag-out of vehicle(s) prior to performing maintenance. Notify the Contracting Officer's Representative if vehicle(s) maintenance must be performed in a condition not requiring lockout or tag-out conditions.
- 4.8 Replace inoperative or unsafe vehicles, upon notification by authorized Government representative as specified in technical exhibits 1 and 2.
 - 4.8.1 Supply a manufacturer's technical representative or ASME certified mechanic to respond on-site as specified in technical exhibits 1 and 2.
 - 4.8.2 Provide the Contracting Officer's Representative the name, telephone number and/or other contact information to coordinate contact with the contractor's representative for repair of defective or inoperative equipment.
 - 4.8.3 Coordinate scheduled pick-up of the vehicle(s), at the end of the period of performance, with the Contracting Officer's Representative. If the contractor is unable to accomplish pick-up on this date, immediately notify the Contracting Officer's Representative and provide an alternate date and time of pick-up that is mutually agreeable.

PART 5

SALIENT CHARACTERISTICS OF LIFTING ATTACHMENTS ON FORKLIFTS

5.0. **SALIENT CHARACTERISTICS:**

- 5.1 Manufacturer approved lifting attachments for lifting of the forklift that accommodates standard rigging gear (e.g. shackles, wire rope pendants, etc.) in a simple arrangement (e.g. 4 straight wires to a common pick point directly above the center of gravity) without interference to ensure the pad eyes are loaded in the plane of the pad eye. Each pick point shall be capable of holding $\frac{1}{2}$ of the total weight of the forklift with the impact of sling angles considered. Orientation of lifting attachment points and proposed rigging arrangement shall be such that the pad-eyes are loaded in the plane of the pad-eye ($\pm 5^\circ$) or shall have a professional engineer's evaluation verifying the pad-eyes ability to support a side-load. Lifting attachment points shall be clearly identified on the equipment or within Original Equipment Manufacturer (OEM) operating manuals.
- 5.2 The forklift draw bar shall not be used as a lift point.

- 5.3 Retrofitted, repaired, or modified lifting accessories on these types of machines must comply with section 1926.251(a)(4) of OSHA 29 CFR Part 1926 Subpart H, "Materials, Handling, Storage, Use, and Disposal".

PART 6 SPECIFIC TASKS

6. **SPECIFIC TASKS:**

6.1 **Basic Services:** The contractor shall provide leasing services for forklifts meeting the following specifications:

6.1.1 Specifications for 3 Ton for 6,000 LB net capacity Industrial Forklift

Rated Capacity 5,600 lbs. (minimum) to 6,500 lbs. (maximum)

Load Center 24 inches

Transmission Automatic

Tires Solid (foam filled)

Mast Type: 2 or 3 stage, nested channel

Mast Extended Height: 170" (minimum)

Overall Width 60" (maximum)

Fork Length 48" pallet type

Forks shall have side-shift capability

Fuel Diesel

Parking Brake: Hand/Foot operated

Lights: Brake, front and rear drive lights, work-lights

Dash Instruments: Battery discharge, oil pressure, fuel gauge, water temperature, and engine hour meter

Must have manufacturer approved lifting attachments for government crane lifts per PART 5.

6.1.2 Variations of 3 Ton specification

Fork length 72" Pallet Type

Must have manufacturer approved lifting attachments for government crane lifts per PART 5.

6.1.3 Specification for 7 Ton 14,000 LB net capacity Industrial Forklift

Rated Capacity: 13,000 lbs. (minimum) to 16,000 lbs. (maximum)

Load Center 24 inches

Transmission Automatic

Tires: Solid (foam filled)

Mast Type: 2 or 3 stage nested channels to provide maximum visibility of the attachment and load.

Lowered Mast Height: 148" (maximum)

Mast Extended Height: 260" (minimum)

Fork Length: 72" pallet type

Forks shall have side-shift capability

Fork Width: 6" (maximum)

Fork Thickness: 3" (maximum)

Fork Spread: 7" or less for minimum fork spread (inside edge to inside edge), 72" or greater for maximum fork spread (outside edge to outside edge)

Fuel: Diesel, if diesel exhaust fluid (DEF) is required Contractor will fill as required.

Parking Brake: Hand or foot operated

Lights: Brake, front and rear drive lights, work lights

Dash Instruments: Battery discharge, oil pressure, fuel gauge, water temperature, and engine hour meter.

Must have manufacturer approved lifting attachments for government crane lifts per PART 5.

6.1.4 Variation of 7 Ton Specification

Fork length 96" pallet type

Must have manufacturer approved lifting attachments for government crane lifts per PART 5.

6.1.5 Specification for 10 Ton for 20,000LB net capacity Industrial Forklifts

Rated Capacity: 19,000 lbs. (minimum) to 25,000 lbs. (maximum)

Load Center: 24 inch (minimum)

Transmission: Automatic

Tires: Solid (foam filled)

Mast Type: Nested channels to provide maximum visibility of the attachment and load with minimal obstructions (i.e. chains or flex hoses)

Mast Lowered Height: 190" (maximum)

Mast Extended Height: 200" (minimum)

Fork Length: 96" pallet type

Forks shall have side-shift capability

Fork Spacing: 7" or less minimum fork spread (inside edge to inside edge), 88" or greater maximum fork spread (outside edge to outside edge)

Fuel: Diesel, if diesel exhaust fluid (DEF) is required Contractor will fill as required.

Parking Brake: Hand or foot operated

Lights: Brake, front and rear drive lights, work-lights

Dash Instruments: Battery discharge, oil pressure, fuel gauge, water temperature, and engine hour meter.

Must have manufacturer approved lifting attachments for government crane lifts per PART 5.

6.1.6 Variation of 10 Ton Specifications

Fork length: 120" pallet type

Must have manufacturer approved lifting attachments for government crane lifts per PART 5.

6.1.7 Specifications for 17 Ton for 34,000 LB net capacity Industrial Forklifts

Rated Capacity: 33,000 lbs. (minimum) to 36,000 lbs. (maximum)

Load Center: 24 inch

Transmission: Automatic

Tires: Solid (foam filled)

Mast Type: Nested channels to provide maximum visibility of the attachment and load with minimal obstructions (i.e. chains or flex hoses)

Mast Lowered Height: 190" (maximum)

Mast Extended Height: 200" (minimum)

Fork Length: 96", pallet type

Forks shall have side-shift capability

Fork Spacing: 9” or less minimum fork spread (inside edge to inside edge), 94” or greater maximum fork spread (outside edge to outside edge)

Fuel: Diesel, if diesel exhaust fluid (DEF) is required Contractor will fill as required.

Parking Brake: Hand or foot operated

Lights: Brake, front and rear drive lights, work-lights

Dash Instruments: Battery discharge, oil pressure, fuel gauge, water temperature, and engine hour meter

Operator Cab: Forklift shall be supplied with a fully enclosed cab equipped with two doors, heater, defroster, fan and wipers

Variations of 17 Ton Specifications:

Fork length 120” pallet type

Load Center: 48 inch

Must have manufacturer approved lifting attachments for government crane lifts per PART 5.

6.1.8 Variations of 17 Ton Specifications:

Fork length 120” pallet type

Load Center: 48 inch

Must have manufacturer approved lifting attachments for government crane lifts per PART 5.

6.2 Maintenance: The contractor shall maintain all forklifts leased by the government under this contract so that downtime is minimized and all forklifts remain in working condition while leased by the government.

6.3 Repair Services: The contractor is responsible for all repairs to government-leased forklifts that is not a direct result of government negligence within 8 hours of notification by the Government or provide a replacement unit within two business days, Monday through Friday 0700-1600 at no additional cost to the government.

6.4 Transportation: Contractor shall provide delivery of forklifts to and from the government facilities identified via task order at contractor expense and shall provide all transportation at contractor expense as required to perform maintenance or repairs. Contractor shall coordinate delivery of forklifts with COR and shall provide delivery IAW the Period of Performance identified per task order.

PART 7 APPLICABLE PUBLICATIONS

7. APPLICABLE PUBLICATIONS (CURRENT EDITIONS):

7.1 The Contractor must abide by all applicable regulations, laws, publications, manuals, and local policies and procedures.

7.1.1 40 CFR 63.6625(i) or (j) available at <https://www.ecfr.gov/>

7.1.2 29 CFR, Part 1926, Subpart H, Material Handling, Storage, Use, and Disposal available at <https://www.ecfr.gov/>

7.1.3 Industrial Truck Standard Development Foundation, ITSDF B56 standard available at <https://blog.ansi.org/2020/12/ansi-b56-1-2020-itsdf-safety-standard-trucks/>

PART 8 ATTACHMENT/TECHNICAL EXHIBIT LISTING

8. ATTACHMENT/TECHNICAL EXHIBIT LIST:

8.1 Technical Exhibit 1 – Performance Requirements Summary

8.2. Technical Exhibit 2 – Deliverables Schedule

8.3 Technical Exhibit 3 – Estimated Workload Data

TECHNICAL EXHIBIT 1

Performance Requirements Summary

The contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective (The Service required—usually a shall statement)	Standard	Performance Threshold (This is the maximum error rate. It could possibly be “Zero deviation from standard”)	Method of Surveillance
PRS # 1 The contractor shall provide leasing services of 3 ton, 7 ton, 10 ton, and 17 ton forklifts per specifications (including variations) PWS 6.1	Contractor to deliver and pick-up Forklifts and provide inspection documents within 2 business days of task order start date.	100% of the services performed and documents submitted	100% Inspection by COR
PRS # 2 Maintenance: PMs will be performed per the contractor’s requirements. PWS 6.2	Contractor to perform scheduled maintenance of Forklifts within 2 business days of notification by Government Monday through Friday 0700-1600.	100% of scheduled maintenance completed within 2 business days 0700-1600 Monday through Friday.	100% Inspection by COR
PRS # 3 Contractor to provide Forklift repairs within 8 hours of notification by the Government or provide replacement unit within 2 business days Monday through Friday 0700-1600. PWS 6.3	When notified by the COR, Contractor will respond on site within 8 hours to diagnose/repair forklift Monday through Friday 0700-1600 or provide a replacement unit within 2 business days 0700-1600 Monday through Friday.	100% of repairs within 8 hours of notification by Government. Replacement unit onsite within 2 business days 0700-1600 Monday through Friday if repairs cannot be completed	100% Inspection by COR

PRS # 4 Contractor to provide transportation of forklifts to and from the government facilities or as required to perform maintenance or repairs. PWS 6.4	The contractor delivered all deliverables timely	No more than 2 business days late in submission	100% Inspection by COR
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TECHNICAL EXHIBIT 2

Deliverables Schedule

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
Forklifts PWS 6.1	Within 1-2 days of contract award/ task order award	1	Forklift onsite in the location established on the Task Order.	COR VIA EMAIL
Preventive Maintenance PWS 6.2	Within 8 hours of scheduled PM Monday through Friday 0700-1600.	1	Notify COR by email of maintenance schedule and completion.	COR via Email
Repair PWS 6.3	Within 24 hours of notification from COR Monday through Friday 0700-1600.	1	Notify COR by email of repair completion.	COR via Email
Transportation PWS 6.4	Within 2 days of task order award period of performance.	1	Notify COR by email of delivery/transport.	COR via Email